

AN ACCOUNT
OF
THE LATE
Intended Insurrection
AMONG
A Portion of the Blacks
OF THIS CITY.

Published by the Authority
OF
THE CORPORATION OF CHARLESTON.

(THIRD EDITION.)

CHARLESTON: 
PRINTED BY A. E. MILLER,
4 Broad-Street.
....
1822.

AN ACCOUNT
OF
THE LATE
Intended Insurrection
AMONG
A Portion of the Blacks
OF THIS CITY.

Published by the Authority
OF
THE CORPORATION OF CHARLESTON.

(THIRD EDITION.)

CHARLESTON: 
PRINTED BY A. E. MILLER,
4 Broad-Street.
....
1822.

The Project Gutenberg eBook of An Account of the Late Intended Insurrection among a Portion of the Blacks of this City

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: An Account of the Late Intended Insurrection among a Portion of
the Blacks of this City

Creator: Charleston
Jr. James Hamilton

Release date: September 24, 2019 [eBook #60349]
Most recently updated: October 17, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/60349

Credits: Produced by Richard Tonsing, hekula03, and the Online
Distributed Proofreading Team at <http://www.pgdp.net> (This
file was produced from images generously made available
by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK AN ACCOUNT
OF THE LATE INTENDED INSURRECTION AMONG A PORTION OF
THE BLACKS OF THIS CITY ***

AN ACCOUNT
OF
THE LATE
Intended Insurrection
AMONG
A Portion of the Blacks
OF THIS CITY.

Published by the Authority
OF
THE CORPORATION OF CHARLESTON.

(THIRD EDITION.)

CHARLESTON:
PRINTED BY A. E. MILLER,
4 Broad-Street.

1822.

CITY COUNCIL,

AUGUST 13TH, 1822.

“RESOLVED, that the Intendant be requested to prepare for publication, an account of the late intended Insurrection in this City, with a Statement of the Trials and such other facts in connexion with the same as may be deemed of public interest.”

TO THE PUBLIC.

In complying with the objects of the above Resolution, I have not been insensible to the difficulties and embarrassments necessarily incident to the subject, as to what it might be politic either to publish or suppress. With the advice, however, of the Corporation, I have deemed a full publication of the prominent circumstances of the late commotion the most judicious course, as suppression might assume the appearance of timidity or injustice. Whilst such a Statement is due to the character of our community, and justification of our laws, there can be no harm in the salutary inculcation of one lesson, among a *certain* portion of our population, that there is nothing they are bad enough to do, that we are not powerful enough to punish.

J. HAMILTON, jun. *Intendant*,

Charleston, August 16th, 1822.

AN ACCOUNT, &C.

On Thursday, the 30th of May last, about 3 o'clock in the afternoon, the Intendant of Charleston was informed by a gentleman of great respectability, (who, that morning, had returned from the country) that a favourite and confidential slave of his had communicated to him, on his arrival in town, a conversation which had taken place at the market on the Saturday preceding, between himself and a black man; which afforded strong reasons for believing that a revolt and insurrection were in contemplation among a proportion at least of our black population. The Corporation was forthwith summoned to meet at 5 o'clock, for the purpose of hearing the narrative of the slave who had given this information to his master, to which meeting the attendance of His Excellency the Governor was solicited; with which invitation he promptly complied. Between, however, the hours of 3 and 5 o'clock, the gentleman who had conveyed the information to the Intendant, having again examined his slave, was induced to believe, that the negro fellow who had communicated the intelligence of the intended revolt to the slave in question, belonged to Messrs. J. & D. Paul, Broad Street, and resided in their premises. Accordingly, with a promptitude worthy of all praise, without waiting for the interposition of the civil authority he applied to the Messrs. Paul and had the whole of their male servants committed to the Guard-House, until the individual who had accosted the slave of this gentleman, on the occasion previously mentioned, could be identified from among them.

On the assembling of the Corporation at five, the slave of this gentleman was brought before them, having previously identified Mr. Paul's William as the man who had accosted him in the market, he then related the following circumstances:

‘On Saturday afternoon last (my master being out of town) I went to market; after finishing my business I strolled down the wharf below the fish market, from which I observed a small vessel in the stream with a singular flag; whilst looking at this object, a black man, (Mr. Paul’s William) came up to me and remarking the subject which engaged my attention said, I have often seen a flag with the number 76 on it, but never with 96, before. After some trifling conversation on this point, he remarked with considerable earnestness to me. Do you know that something serious is about to take place? To which I replied no. Well, said he, there is, and many of us are determined to right ourselves! I asked him to explain himself—when he remarked, why, we are determined to shake off our bondage, and for this purpose we stand on a good foundation, many have joined, and if you will go with me, I will show you the man, who has the list of names who will take yours down.—I was so much astonished and horror struck at this information, that it was a moment or two before I could collect myself sufficiently to tell him I would have nothing to do with this business, that I was satisfied with my condition, that I was grateful to my master for his kindness and wished no change.—I left him instantly, lest, if this fellow afterwards got into trouble, and I had been seen conversing with him, in so public a place, I might be suspected and thrown into difficulty.—I did not however remain easy under the burden of such a secret, and consequently determined to consult a free man of colour named —— and to ask his advice. On conferring with this friend, he urged me with great earnestness to communicate what had passed between Mr. Paul’s man and myself to my master, and not to lose a moment in so doing.^[1] I took his advice, and not waiting, even for the return of my master to town, I mentioned it to my mistress and young master.—On the arrival of my master, he examined me as to what had passed, and I stated to him what I have mentioned to yourselves.’

On this witness being dismissed from the presence of Council, the prisoner (William) was examined. The mode resorted to in his examination was to afford him no intimation of the subject of the information which had been lodged against him, as it was extremely desirable in the first place, to have the testimony of the other witness corroborated as to time and place, that, from the confessions of the prisoner himself, it might appear that he was at the fish-market at the period stated, and that a singular flag, flying on board of a schooner, had formed the subject of his observation. After a vast

deal of equivocation, he admitted all these facts, but when the rest of his conversation was put home to him, he flatly denied it, but with so many obvious indications of guilt, that it was deemed unwise to discharge him. He was remanded, for the night, to the Guard-House, it having been decided to subject him to solitary confinement in the black-hole of the Work-House, where, on the succeeding morning, he was to be conveyed.

On the morning of the 31st he was again examined by the attending Warden at the Guard-House (having, during the night, made some disclosures to Capt. Dove) on which occasion he admitted all the conversation which he had held at the fish-market, with the witness before mentioned, and stated that he had received his information from Mingo Harth, who was in possession of the muster-roll of the insurgents.

With the hope of still further disclosures William was conveyed to the Work-House and placed in solitary confinement. The individuals (Mingo Harth and Peter Poyas) against whom he gave information, as those who had communicated to him the intelligence of the plot for raising an insurrection, were forthwith taken up by the Wardens and their trunks examined. These fellows behaved with so much composure and coolness, and treated the charge, alleged against them, with so much levity—(no writings being found in their chests, containing the smallest suspicion, excepting an enigmatical letter,^[2] which was then too obscure for explanation, and to which subsequent events only afforded a clue)—that the Wardens (Messrs. Wesner & Condy) were completely deceived, and had these men discharged. One of these (Peter Poyas) proved afterwards, as will appear in the sequel, to be one of the principal ringleaders in the conspiracy, on whose courage and sagacity great reliance was placed.

Council being still under the conviction that William Paul was in possession of more information than he had thought proper to disclose, a Committee was appointed to examine him from time to time, with the hope of obtaining further intelligence. Although Peter and Mingo had been discharged, yet it was deemed advisable to have them watched, and consequently spies were employed of their own colour for this purpose, in such a manner as to give advices of all their movements.

Things remained in this state for six or seven days, until about the 8th of June, when William, who had been a week in solitary confinement, beginning to fear that he would soon be led forth to the scaffold, for

summary execution, in an interview with Mr. Napier, (one of the Committee appointed to examine him) confessed, that he had for some time known of the plot, that it was very extensive, embracing an indiscriminate massacre of the whites, and that the blacks were to be headed by an individual, who carried about him a charm which rendered him invulnerable. He stated, that the period fixed for the rising, was on the second Sunday in June. This information was without delay conveyed to his Excellency the Governor, and Council forthwith convened. Whatever faith we might have been disposed to place in the unsupported and equivocal testimony of William, it was not conceived to be a case in which our doubts should influence our efforts for preparation and defence. Measures were consequently promptly taken, to place the City Guard in a state of the utmost efficiency. Sixteen hundred rounds of ball cartridges were provided, and the centinels and patrols ordered on duty with loaded arms. Such had been our fancied security, that the guard had previously gone on duty without muskets, with sheathed bayonets and bludgeons.

Three or four days now elapsed, and notwithstanding all our efforts, we could obtain no confirmation of the disclosures of William, on the contrary, they seemed to have sustained some invalidation, from the circumstance, of one of the individuals (Ned Bennett) whom he named as a person who had information in relation to the insurrection, coming voluntarily to the Intendant, and soliciting an examination, if he was an object of suspicion. In this stage of the business, it was not deemed advisable prematurely to press these examinations, as it might have a tendency to arrest any further developments.

On the night, however, of Friday the 14th, the information of William was amply confirmed, and details infinitely more abundant and interesting afforded. At 8 o'clock on this evening, the Intendant received a visit from a gentleman, who is advantageously known in this community for his worth and respectability.

This gentleman, with an anxiety, which the occasion was well calculated to beget, stated to the Intendant, that, having the most unbounded confidence in a faithful slave belonging to his family, who was distinguished alike for his uncommon intelligence and integrity, he was induced to inform him, that rumors were abroad of an intended insurrection of the blacks, and that it was said, that this movement had been traced to

some of the coloured members of Dr. Palmer's church, in which he was known to be a class leader.—On being strongly enjoined to conceal nothing, he, the next day, Friday the 14th, came to his master, and informed him, that the fact was really so, that a public disturbance was contemplated by the blacks, and not a moment should be lost in informing the constituted authorities, as the succeeding Sunday, the 16th, at 12 o'clock, at night, was the period fixed for the rising, which, if not prevented, would inevitably occur at that hour. This slave, it appears, was in no degree connected with the plot, but he had an intimate friend, A—— (one of his class) who had been trusted by the conspirators with the secret, and had been solicited by them to join their association; to this A—— first appeared to consent, but, on no period absolutely sent in his adhesion. According to the statement which he afterwards made himself to the Court, it would seem that it was a subject of great regret and contrition with him, that he had ever appeared to lend his approbation to a scheme so wicked and atrocious, and that he sought occasion to make atonement, by divulging the plot, which on the 14th he did, to the slave of the gentleman in question, his class leader.^[3]

This gentleman, therefore, mentioned, that his servant had informed him, that A——^[4] had stated, that about three months ago, Rolla, belonging to Governor Bennett, had communicated to him the intelligence of the intended insurrection, and had asked him to join—'That he remarked, in the event of their rising, they would not be without help, as the people from San Domingo and Africa would assist them in obtaining their liberty, if they only made the motion first themselves. That if A—— wished to know more, he had better attend their meetings, where all would be disclosed.' After this, at another interview, Rolla informed A——, that 'the plan was matured, and that on Sunday night, the 16th June, a force would cross from James' Island and land on South Bay, march up and seize the Arsenal and Guard-House, that another body at the same time would seize the Arsenal on the Neck, and a third would rendezvous in the vicinity of his master's mills. They would then sweep the town with fire and sword, not permitting a single white soul to escape.'

As this account was remarkably coincident with the one given by William (Mr. Paul's slave) as the witnesses could have had no possible communication, or the story have been the result of preconcert and

combination, the sum of this intelligence was laid before the Governor by 9 o'clock, and by 10 o'clock the commanding officers of the regiments of the City militia, convened by his Excellency's order, at the residence of the Intendant. On this and the succeeding afternoon, at another meeting of the same individuals, such measures were determined on by his Excellency, as were deemed best adapted to the approaching exigency of Sunday night.

On Sunday the 16th, at 10 o'clock at night, the following corps were ordered to rendezvous for guard—

Capt. Cattel's Corps of *Hussars*, Capt. Miller's *Light Infantry*, Capt. Martindale's *Neck Rangers*, *Charleston Riflemen*, and *City Guard*.^[5]

The whole were organized as a detachment, and placed under the command of Col. R. Y. Hayne. Although there was necessarily great excitement, and among the female part of our community much alarm, yet, the night passed off without any thing like commotion or disturbance, and it is peculiarly honorable to the corps on service, that in a populous town, the streets filled until a late hour with persons, uncertain whether it was safe to go to *rest* or *not*, not a single case of false alarm was excited. A steadiness altogether praiseworthy, in troops unaccustomed to guard duty, at least on an occasion involving such deep interest and distressing anxiety.

The conspirators finding the whole town encompassed at 10 o'clock, by the most vigilant patrols, did not dare to show themselves, whatever might have been their plans. In the progress of the subsequent investigation, it was distinctly in proof, that but for these military demonstrations, the effort would unquestionably have been made; that a meeting took place on Sunday afternoon, the 16th, at 4 o'clock, of several of the ringleaders, at Denmark Vesey's, for the purpose of making their preliminary arrangements, and that early in the morning of Sunday, Denmark despatched a courier, to order down some country negroes from Goose Creek, which courier had endeavored in vain to get out of town.

No developement of the plot having been made on Sunday night, and the period having passed, which was fixed on for its explosion, it now became the duty of the civil authority to take immediate steps for the apprehension, commitment, and trial of those against whom they were in possession of information. Council was accordingly convened, and as a preliminary measure, it was deemed expedient, that a Court of the highest respectability, for the talents and integrity of its members, should be assembled, and that,

whilst the requisitions of the Act of Assembly, of 1740, should be strictly complied with, in devolving the warrant of summons on the Magistrates; the Corporation saw no impropriety in affording these officers a list of such names of Freeholders, as they knew would meet in a preeminent degree the public approbation; and to these persons private letters were written by the authority of Council, strongly soliciting their acceptance of a trust, involving indeed the most irksome labour, as well as the deepest responsibility. In conformity with these arrangements, the following Court was organized on the evening of the 17th:—

Magistrates,

LIONEL H. KENNEDY,	}
and	} Esqrs.
THOMAS PARKER,	}

Freeholders,

Colonel WILLIAM DRAYTON,	
NATH'L. HEYWARD,	}
J. R. PRINGLE,	} Esqrs.
JAMES LEGARE,	}
R. J. TURNBULL.	}

Cotemporaneously with the organization of this Court, a Committee of Vigilance and Safety was appointed from among the Members of Council, to aid the Intendant in the execution of the laws; to co-operate with him during the recess of Council, in all those measures necessary for exploring the causes and character of the existing disturbance, and bringing to light and punishment the suspected and guilty. How ably these functions were discharged by this Committee, it is not befitting the occasion or the circumstances under which this publication appears to dwell. Their generous devotion and unremitting assiduity to the public interests and safety, are left to the more appropriate appreciation of a community that witnessed their labours. This Committee consisted of Messrs. Wesner, Napier, Condry, Burger, and Simons, and were zealously aided by the rest of the Wardens; and for its service, four of the most active, intelligent, and confidential non-commissioned officers of the City Guard, were detached as Police Officers, to search suspected places, and to apprehend those for whom warrants might be issued. This Committee commenced its labours on the night of the 17th, and during the ensuing twenty-four hours, the following slaves were committed:—*Rolla, Batteau, Matthias* and *Ned*, the

property of the Governor Bennett; *Mungo* and *Peter*, the property of James Poyas; *Amhurst*, the property of Mrs. Lining; *Stephen*, the property of T. R. Smith; *Richard* and *John*, the property of Jonathan Lucas.

On the morning of the 19th of June, the Court of Magistrates and Freeholders assembled at the Court-House, were sworn in, and proceeded to the arraignment of the above prisoners for trial. Who were charged “*with attempting to raise an insurrection among the Blacks against the Whites.*” In order that the public may understand the offence as defined in the Act of 1740, the clause, at length, will be found in the Appendix, marked (A.)

Before we proceed to a brief (and it necessarily must be very brief) abstract of the testimony offered in the cases brought before the Court, it may not be unimportant to observe, that, previous to their proceeding to the painful investigation with which they were charged, they laid down a variety of rules for their government, all of them subservient to justice as well as humanity. In the first place, it was decided, that the testimony should be regulated by those established rules of evidence, which are elsewhere found so important in the exposition of truth; that no slave should be tried but in the presence of his Master or his Attorney; that the testimony of one witness, unsupported by circumstances, should lead to no conviction involving capital punishment; and that the statement of the party himself, should be heard in explanation of such particulars, as seemed most inculpatory.

THE COURT,

Being thus organized, they proceeded to the trial of ROLLA, the slave of Governor Bennett:—

JACOB AXSON, Esq. attending as Attorney of his master.

It was proved, that *Rolla* had confessed to two persons, both of whom were examined by the Court, that he belonged to the conspiracy, and with one of these witnesses (his friend) he used every effort to induce him to join in the insurrection, which *Rolla* stated was to take place on the night of the 16th of June.—Finding that this friend (the witness in question) would not join the association, he urged him to go out of town on Sunday night, lest some harm should come to him. *Rolla* represented himself as the commander of the Force which was to rendezvous in the vicinity of his master's mills, and explained to the witness fully the order of attack; the division of the forces; and said, "that his troops, in their way into town, would fix his Old Buck (his master) and the Intendant." On being asked whether it was intended to kill the women and children, he remarked when we have done with the men we know what to do with the women.—On this testimony *Rolla* was found *guilty*, and sentenced to be executed on the 2d of July.^[6]

BATTEAU was next tried—

It was proved that *Batteau* confessed to two persons (both of whom were introduced as witnesses) that he belonged to the conspiracy, and made efforts to induce them to join in the rising, by representing the extent of their preparations, and the probability of their success. He stated he was to head a party near Canon's bridge, and that he expected aid from the country.—More than one interview took place between *Batteau* and the witnesses on the subject; the last, on the Sunday fixed for the insurrection, on which he renewed his solicitations that the witnesses should join him.—*Batteau* was found *guilty*, and sentenced to be executed on the 2d of July.

STEPHEN, belonging to Thos. R. Smith, Esq.

Was next brought before the Court, but the testimony being deemed insufficient, and indeed, the Court being satisfied of his innocence, directed his *discharge*.

PETER, the slave of Mr. James Poyas, was next tried.

It was distinctly in proof, against *Peter*, that he had made great efforts to induce others to join in the insurrection; and the testimony represented him quite in the character of a chieftain or leader, for which his boldness and sagacity unquestionably qualified him.—He appeared, from the testimony, to have employed uncommon pains to remove all the objections arising in the minds of those whom he attempted to enlist, as to the probability of the success of the effort. And spoke with great confidence of the succors which were expected from San Domingo. It was strongly to be inferred, from all the witnesses stated, that the difficult and dangerous sally of endeavouring to carry the Main Guard-House was to have been confided to him, for he particularly acquainted one of the witnesses with the combination of stratagem and force with which he proposed to accomplish this object.

Peter was found *guilty* on this testimony, and sentenced for execution on the 2d of July.^[7]

AMHERST, belonging to Mrs. Lining, was next examined, found *not guilty*, and *discharged*.

The Court then proceeded to the trial of NED, the property of Governor Bennett.

Ned's guilt was proved fully by the same witnesses that appeared against Peter Poyas, with whom it was established he was in the habit of frequent consultation on the efforts that were to be made. Subsequent disclosures have justified very strongly the finding of the Court against him, and placed it beyond a doubt, that he was a ringleader, and was to have headed a force in the vicinity of the Lines.

He was found *guilty*, and sentenced for execution on the 2d of July.

On the 24th of June, the Court discharged as *not guilty*, *Samuel Guifford* and *Robert Hadden*, two free persons of colour, as also *Matthias*, the slave of Governor Bennett; *Mungo*, the slave of Mr. Poyas; *Robert*, the slave of Mr. Harth, and *Richard* and *John*, the slaves of Mr. Lucas.

On the 25th of June, the Court examined the cases of *Jim*, belonging to Mr. Ancrum; *Sandy*, belonging to Mr. Holmes, and *Friday*, the property of Mr. Rout, all of whom were found *not guilty*, and *discharged*.

On Wednesday, the 26th of June, the Court proceeded to the trial of ABRAHAM, the slave of Dr. Poyas.

The only proof adduced against *Abraham*, was the following letter, found in the trunk of Peter Poyas, and acknowledged by Abraham to have been written by himself,—

“DEAR SIR,—With pleasure I give you an answer. I will endeavour to do it. Hoping that God will be in the midst to help his own. Be particular and make a sure remark. Fear not, the Lord God that delivered Daniel is able to deliver us. All that I inform agreed. I am gone up to Beach-Hill.”

(Signed)

ABRAHAM POYAS.”

Although this letter was extremely suspicious, yet, there being no other testimony against Abraham, he was found *not guilty* of the charge ‘of attempting to raise an insurrection among the blacks against the whites.’

On Thursday the 27th, DENMARK VESEY, a free black man, was brought before the Court for trial,

Assisted by his Counsel, G. W. CROSS, Esq.

It is perhaps somewhat remarkable, that at this stage of the investigation, although several witnesses had been examined, the *atrocious* guilt of *Denmark Vesey* had not been as yet fully unfolded. From the testimony of most of the witnesses, however, the Court found enough, and amply enough, to warrant the sentence of death, which, on the 28th, they passed on him. But every subsequent step in the progress of the trials of others, lent new confirmation to his overwhelming guilt, and placed him beyond a

doubt, on the criminal eminence of having been the individual, in whose bosom the nefarious scheme was first engendered. There is ample reason for believing, that this project was not, with him, of recent origin, for it was said, he had spoken of it for upwards of four years.

These facts of his guilt the journals of the Court will disclose—that no man can be proved to have spoken of or urged the insurrection prior to himself. All the channels of communication and intelligence are traced back to him. His house was the place appointed for the secret meetings of the conspirators, at which he was invariably a leading and influential member; animating and encouraging the timid, by the hopes of prospects of success; removing the scruples of the religious, by the grossest prostitution and perversion of the sacred oracles, and inflaming and confirming the resolute, by all the savage fascinations of blood and booty.

The peculiar circumstances of guilt, which confer a distinction on his case, will be found narrated in the confessions of Rolla, Monday Gell, Frank and Jesse, in the Appendix. He was sentenced for execution on the 2d July.^[8]

The Court tried JESSE, the slave of Mr. Thomas Blackwood.

The testimony against *Jesse* was very ample. His activity and zeal, in promoting the views of Denmark Vesey, in relation to the plot, were fully proved. He had engaged with Vesey to go out of town on Sunday the 16th, to bring down some negroes from the country, to aid in the rising on that night; and remarked, to the witnesses, on his way to Hibbens' ferry, "if my father does not assist I will cut off his head." All the particulars in proof against him, he confirmed after receiving his sentence, by his own full and satisfactory Confession, which will be found in the Appendix, marked (H.)

This man excited no small sympathy, not only from the apparent sincerity of his contrition, but from the mild and unostentatious composure with which he met his fate.

Sentence of death was passed on these six men, on the 28th of June, and they were executed on the 2d of July. With the exception of Jesse and Rolla, they made no disclosures; all of them, with those exceptions, either explicitly or implicitly affirming their innocence. It is much to be lamented that the situation of the Work-House, at this period, precluded, after their

sentence, their being separately confined; at least, that Vesey could not have been subjected to the gloom and silence of a solitary cell. He might have been softened, and afforded the most precious confessions, as his knowledge and agency in the nefarious scheme very far exceeded the information of others, who, however guilty, seemed but the agents of his will. But these men mutually supported each other, and died obedient to the stern and emphatic injunction of their Comrade (Peter Poyas) "*Do not open your lips! Die silent, as you shall see me do!*" It was, perhaps, *alone*, in Denmark Vesey's power, to have given us the true character, extent and importance of the correspondence, it was afterwards proved, was carried on with certain persons in San Domingo.

On the 1st of July the Court proceeded to the trial of MONDAY GELL, who, together with CHARLES DRAYTON, had been apprehended; the first, on the 27th of June, and the latter, on the 2d of July.

By referring to the Appendix (D.) & (E.) the nature of the testimony against these individuals will be seen. In reference to the case of *Monday Gell* it was established that he had been a very important ringleader, and that his shop, in Meeting-Street, was a place at which many meetings were held; at all of which he was present, lending the most zealous aid, and affording the strongest countenance; and if any confirmation of his guilt should be sought for, it may be found in his own confession in the Appendix (K.) After Monday Gell and Charles Drayton were convicted there appeared to be a pause in our further discoveries, and some prospect of the investigation closing with their execution and that of John Horry, Harry Haig and Gullah Jack, (for the guilt of the latter, see Appendix (D.) (E.) & (F.))

On the 9th of July, however, these five men, were called before the Court to receive sentence, and after it had been pronounced, with the most impressive solemnity, they were withdrawn to a common ward in the Work-House, for half an hour, until separate cells could be provided for them. It was at this moment that *Charles Drayton*, overwhelmed with terror and guilt, went up to *Monday* and reproached him with having induced him to join in a scheme which had placed him in such a miserable and perilous

situation. To this appeal Monday, not only confessed his guilt, but observed to Charles—that their present fate was justly and precisely what they had a right to expect, after their detected and defeated project. On which there immediately ensued between them a conversation on the extent of the guilt of others, in which Monday gave Charles the names of many accomplices whom he had not previously known in the plot;—the arrival of the blacksmith to iron the convicts, and the turnkey to convey them to separate cells, interrupted the conversation.

Charles, during the night of the 9th, sent for Mr. Gordon, who has charge of the Work-House, and informed him that he was extremely anxious to see the Intendant, as he had some important disclosures to make. By day-light, on the morning of the 10th, this message was conveyed to the person for whom it was intended, and Charles was visited at sun-rise. He was found, in a state of the most lamentable depression and panic, and he seemed prepared to make the most ample declarations from the fear of death, and the consequences of an *hereafter*, if he went out of the world without revealing all that he knew, in relation to the Conspiracy, in which he had been so active an agent. Before his narrative was received, he was most specially put on his guard, that no promises could be made to him of a reversal of his fate, but that he might rest satisfied, his condition could not be worse by his coming out with a full disclosure of all that he knew. He then stated many particulars, that had come to his own knowledge, proving a much wider diffusion of the plot than, at that period, was imagined; and, after giving up the names of several of his comrades, he mentioned the conversation which had been commenced and broken off, in the common ward of the Work-House, between Monday Gell and himself. As Monday, at this period, did not seem disposed to make any confessions to others, whatever he might be inclined to do to his friend Charles, it was considered important, that the conversation between them should be renewed, and they were brought together in the same cell, and left for twenty-four hours alone; but some little stratagem was employed, to divert the suspicions of Monday, that Charles was confined with him, merely for the purpose of getting information out of him.

On the morning of the 10th, the Court were convened, and apprized, generally, of these new disclosures, which Charles had made, but as he was still *closeted* with Monday, he could not be examined on that day, the Court adjourned to meet on the 13th; on which day Monday Gell's own

confession was heard by them. Between the 10th and 13th, *Charles* and *Monday* were separated (having been respited by His Excellency, the Governor, at the request of the Court) and Charles, on his re-examination afforded much important information, which he had derived from Monday. On Monday's having all this brought to his view, he confessed his own guilt, as well as the truth of the statements which he had made to Charles.^[9]

Cotemporaneously with these communications, PERAULT, belonging to Mr. Strohecker, was taken up, on the 10th, and on his being closely and judiciously examined by his master, he gave a large mass of intelligence confirming what had been related by Monday and Charles, and supplying several deficiencies in their testimony, more especially that part of it which related to the transmission of *certain* letters to San Domingo. These disclosures, with some further details which were obtained from Harry Haig, (whose confession and subsequent testimony went to implicate a corps of Gullah or Angola negroes, that had been organized under the command of their Chief, Gullah Jack,) gave ample employment for three or four days to the Committee of Vigilance, during which upwards of sixty slaves were apprehended.

It would very much transcend the limits necessarily prescribed to this brief memoir, to go over all the trials that subsequently ensued, on these fresh discoveries. As the most important part of the testimony, adduced on these trials, is to be found in the Appendix, it is deemed altogether, superfluous, to make a special application of it to each of the cases, as this would result in a repetition fatiguing and uninteresting to the reader. It will be sufficient to single out a few of the cases most pregnant in interest, and to remark, that the Court on its reorganization on the 13th, justly estimating the extent of the labour before them, laid down certain rules of discrimination in the guilt of the parties to which they give the most definite precision and perspicuity, by adopting two classes of offence; the first involving a primary and the second a minor degree of guilt. Under the first class, they brought all those who were ringleaders, who had made a declaration of their belonging to the association, and who had been present, aiding and abetting in the contribution of money, arms or ammunition, at Denmark Vesey's, or who were in the constant habit of visiting Monday Gell's shop and Bulkley's farm, for the purpose of obtaining and

communicating intelligence of the progress of the conspiracy. Those found guilty in this class, were to be punished with death. Under the second class were arranged those who had merely sent in their adhesion to the ringleaders without ever having attended a meeting at Vesey's, or having been recognized by him as confidential men, or contributed to the purchase of arms or ammunition, or endeavoured to enlist others. The punishment which awaited those found guilty in this class, was transportation beyond the limits of the United States.^[10]

By reference to the Calendar marked (S) in the Appendix, the names of the prisoners committed will be found, and under a proper column, the mode in which they were disposed of, whether by death, transportation, or discharge, from the insufficiency of testimony. The extent of the evidence adduced, therefore, against each individual, may be inferred with accuracy, by observing the punishment awarded him; as the Court adhered with great and rigid fidelity to these rules, which were in unison both with justice and humanity.

Among the vast number of cases disposed of by the first Court; in a session of nearly six weeks, involving the most intense and unremitting labour, it would be impossible to overlook the case of Jack Pritchard, otherwise called GULLAH JACK. The testimony in the Appendix, of more than one of the witnesses, will establish fully his guilt, and prove the justice of the sentence, by which he was ushered into another world; but no description can accurately convey to others the impression which his trial, defence and appearance made on those who witnessed the workings of his cunning and rude address. Born a conjurer and a physician, in his own country (for in Angola they are matters of inheritance) he practised *these arts* in this country for fifteen years, without its being generally known among the whites. Vesey, who left no engines of power unessayed, seems, in an early stage of his design, to have turned his eye on this Necromancer, aware of his influence with his own countrymen, who are distinguished both for their credulous superstition and clannish sympathies. It does not appear that Jack required much persuasion to induce him to join in a project, which afforded him the most ample opportunities of displaying his peculiar art, whilst it is very obvious that his willingness, to do all that Vesey might require, was in no little degree stimulated, by his bitterness and his gall against the whites. Altho' he had been fifteen or twenty years in this country, yet he appeared to be untouched by the influences of civilized life.

—If the part which he was to play in this drama, bespoke that the treacherous and vindictive artifices of war in his own country, existed in unimpaired vigour in his memory, his wildness and vehemence of gesture and the malignant glance with which he eyed the witnesses who appeared against him, all indicated the savage, who indeed had been *caught*, but not *tamed*. It would be both tedious and disgusting to relate the many artifices employed by this miscreant to deceive and cajole his deluded countrymen. Such was their belief in his invulnerability, that his charms and amulets were in request, and he was regarded as a man, who could *only* be harmed but by the *treachery* of his fellows. Even those negroes who were born in this country seem to have spoken of his charmed invincibility with a confidence which looked much like belief. When Jack was dragged forth to the scaffold he seemed conscious that his arts would stand him in little stead, and gave up his spirit without firmness or composure.

The case of TOM RUSSEL, another of the Gullah Band, deserves a brief notice. He was tried some days after Jack, and was executed among the twenty-two Criminals hung on the Lines, on the 26th July. Tom was Jack's *armourer*, and kept his blacksmith's shop on East-Bay. His part in the conspiracy was confined to the making of pikes and spears, which it appears he did on a very approved model. After these weapons were finished, they were held subject to the order of Jack, and by him sent up to Mr. Bulkley's farm,^[11] near the Cross Roads, where handles were provided for them by Polydore Faber, a Gullah, who met his fate on the same scaffold with Tom Russel. This farm was one of the principal rendezvous of the Gullah Band, of which Jack was the Captain.

The trial of LOT FORRESTER, was not without interest, as he was the *courier* of the conspiracy, and was proved to have gone out of town, for the purpose of inducing the country negroes to join in the insurrection; his journeys were both south and north of Charleston. His zeal and perseverance in the cause were strongly proved, and there is every reason for believing that the conflagration of the city was confided, by Vesey, to him. Match-rope was found in a situation where he had probably secreted it. —He was hung on the Lines on the 26th of July.

BACCHUS HAMMETT, who was hung, also, on the 26th, did render, and was to have rendered, on the night of the 16th, the most essential aid. Before the latter period he had stolen from his master's store a keg of powder, which was conveyed, first to Vesey's afterwards to Monday Gell's, and lastly to Gullah Jack, to be prepared into cartridges. On the night of the 16th he was to have slept where the arms of the *Neck-Rangers* were deposited, and facilitated their seizure and distribution among Gullah Jack's corps, who were to have carried this post, as well as Mr. *Duquercron's* store, in which there were 500 stands of arms, deposited for sale.

The cases of JACK GLEN, BILLY PALMER, and JACK PURCELL, are distinguished, not by any peculiar atrocity, but for the hypocrisy they blended with their crime. Their assent to the plot was distinctly shown, and it was in proof, that Vesey had recognized them all as his men. Jack Glen was a Preacher. Billy Palmer, exceedingly pious, and a communicant at the church of his master; and Jack Purcell no less devout. The case of the latter was not without its pathos, from the deep contrition he expressed before his execution; the distressing interest which his mistress is said to have taken in his fate, and the lamentable delusion under which he laboured, which is more particularly unfolded in his confession, in the Appendix marked (L.) [\[12\]](#) Jack Glen and Purcell were hung on the Lines. Billy Palmer has been respited by His Excellency, the Governor, until October next, for a commutation of his punishment to banishment beyond the limits of the United States.

The Court having used the testimony of *Monday Gell*, *Charles Drayton* and *Harry Haig*, very efficaciously, to the ends of public justice, reconsidered the sentences, which had been passed on them, and instead of death, sentenced them to transportation beyond the limits of the United States.

As a matter of form, *Perault*, *John Enslow* and *Billy Bulkley*, (who had become witnesses for the state,) were then tried on their own confessions, and sentenced to be transported beyond the limits of the United States.

These individuals were important witnesses in all the apprehensions and trials subsequent to the 13th of July.

Perault gave his testimony with great fearlessness and candour, and Enslow with much composure and connexion; the evidence of both, as well indeed as that of most of the witnesses, was much appreciated by the Court, after a severe scrutiny.^[13]

This Court, having disposed of all the cases before them, adjourned on the 26th of July.

At this stage of our investigation we were satisfied that of all the ringleaders in the conspiracy, *William Garner*, (who had effected his escape from the city about the 1st of July) only, remained to be punished. As information had been received of his having travelled towards Columbia, a proclamation was issued by His Excellency, the Governor, for his apprehension, in promotion of the success of which some subsidiary steps were taken by private means. On the 2d of August our wishes, relating to Garner, were gratified, by his arrival in town. He had previously been arrested at Columbia, thro' the public spirited efforts of the Intendant of that place and Lieut. Maxcy, who overtook and apprehended him at Granby.

On Garner's arrival, a new Court was organized for his trial, and such other cases as might be brought before them, by precisely the same means as those which had been employed on the appointment of the first; and the services of the following gentlemen secured, who were known to possess, deservedly, a large share of the public confidence.

Magistrates,

JACOB AXON,	}
and	} Esqrs.
G. M. FURMAN,	}

Freeholders.

Hon. JOEL R. POINSETT,	
THOS. R. SMITH,	}
R. Y. HAYNE,	} Esqrs.

Col. THOMAS ROPER,
Col. JOHN GORDON.

This Court adopted the same rules for their government which had been so humanely and dispassionately adopted by the preceding Court, but, as enough had been done for public example, they determined to visit capital punishment on none but ringleaders. The first case they tried was that of WILLIAM GARNER.

Garner's guilt had all the characteristics, which the Court had assigned to the first class of turpitude; it was not only proved that he was actively engaged in recruiting others, but that he was to have led a troop of horse, at the rising, composed of all such of the conspirators as might have appeared in the streets on horseback. And further, that he had made an offer of a command to others in his corps. Four witnesses having sworn positively to his guilt, detailing a variety of particulars, mutually corroborating and supporting each other, he was found guilty and sentenced for execution on the 9th of August, at which period the sentence was carried into effect. This Court having, after a short adjournment, of three or four, days recommenced their session, disposed of twelve cases more, involving a minor degree of guilt, and adjourned finally on the 8th of August.

These trials, together with some private arrangements, made with their owners, in reference to the banishment of several slaves, in cases where their guilt was clear, but not of the first degree, have at length closed the anxious and irksome labours of the corporation, after an examination of little less than two months.

It will be seen, by referring to the Calendar marked (S) that one hundred and thirty-one were committed; thirty-five have suffered death, and thirty-seven have been sentenced to banishment. The most important object to be obtained in uprooting a conspiracy, we have fully accomplished, by bringing to punishment the whole of the ringleaders. Monday Gell, whose knowledge of the plot was, probably, exceeded only by Vesey's, has emphatically stated, that the ringleaders were the first six, who were executed on the 2d of July, to wit: Denmark Vesey, Peter Poyas, Ned Bennett, Rolla, Batteau and Jesse; to which he has since added himself and William Garner, who was executed on the 9th of August.

We, moreover, believe, that all who were active agents (though not ringleaders) in the conspiracy, have expiated their crimes, or are about to do

so, by an eternal exile from our shores. It may be mentioned, in confirmation of this belief, that Monday Gell, from memory, made out a list of forty-two names, of those who were in the habit of visiting his shop, for the purpose of combining and confederating in the intended insurrection, whom he called his company; every one of whom have been apprehended, and disposed of. We cannot venture to say, to how many the knowledge of the intended effort, was communicated, who, without signifying their assent, or attending any of the meetings, were yet prepared to profit by events. That there are many who would not have permitted the enterprize to have failed at a *critical moment*, for the want of their co-operation, we have the best reasons for believing.

Before we conclude, some notice of the probable causes of this conspiracy may be expected. As this is a matter of speculation, we shall not speak without reserve. Of the motives of Vesey, we cannot sit in judgment; they have been scanned by a power who can do higher justice than ourselves. But as they are explained by his character and conduct, during the combinations of the plot, they are only to be referred to a malignant hatred of the whites, and inordinate lust of power and booty. Indeed, the belief is altogether justifiable, that his end would have been answered, if, after laying our city in ashes, and moistening its cinders with blood, he could have embarked with a part of the pillage of our banks for San Domingo; leaving a large proportion of his deluded followers to the exterminating desolation of that justice, which would have awaited, in the end, a transient success. His followers were slaves, and for them it would not be so difficult to assign a motive, if it had not been distinctly proved, that without, scarcely an exception, they had no individual hardship to complain of, and were among the most humanely treated negroes in our city. The facilities for combining and confederating in such a scheme, were amply afforded, by the extreme indulgence and kindness, which characterises the domestic treatment of our slaves. Many slave owners among us, not satisfied with ministering to the wants of their domestics, by all the comforts of abundant food, and excellent clothing, with a misguided benevolence, have not only permitted their instruction, but lent to such efforts their approbation and applause.

Religious fanaticism has not been without its effect on this project, and as auxiliary to these sentiments, the secession of a large body of blacks from the white Methodist Church, with feelings of irritation and disappointment,

formed a hot-bed, in which the germ might well be expected to spring into life and vigour. Among the conspirators *a majority* of them belonged to the *African Church*,^[14] and among those executed were several who had been Class Leaders. It is, however, due to the late head of their church (for since the late events the association has been voluntarily dissolved) and their deacons, to say, that after the most diligent search and scrutiny, no evidence entitled to belief, has been discovered against them. A hearsay rumour, in relation to *Morris Brown*, was traced far enough to end in its complete falsification.

That the course which certain discussions assumed in Congress were likewise efficacious in producing both discontent and delusion, is sufficiently apparent. Jack Purcell's confession in the Appendix, will show to what a purpose Vesey applied those beautiful propositions of civil and natural freedom, which were sported with a wanton recklessness of their consequences, as applied to the condition of a certain portion of our common country.

It is consoling to every individual, who is proud of the character of his country, in the late unhappy events, to be able to say, that, within the limits of the City of Charleston, in a period of great and unprecedented excitement, the laws, without even one violation, have ruled with uninterrupted sway—that no cruel vindictive or barbarous modes of punishment have been resorted to—that justice has been blended with an enlightened humanity, in according to those who had meted out for us murder, rapine and conflagration, in their most savage forms—trials, which, for the wisdom, impartiality and moderation that governed them, are even superior to those which the ordinary modes of judicature would have afforded ourselves.

With little to fear, and nothing to reproach ourselves we may, without shrinking, submit our conduct to the award of posterity, and ourselves to the protection of the Supreme Ruler of Events.

APPENDIX.

(A.)

Every Slave who shall raise, or attempt to raise an Insurrection, in this Province, or shall endeavour to delude or entice any Slave to runaway and leave the Province, every such Slave and Slaves, and his and their accomplices, aiders and abettors, shall, on conviction thereof, as aforesaid, suffer death. *Provided always*, that it shall and may be lawful, to and for the Justices who shall pronounce sentence against such Slaves, by and with the advice and consent of the Freeholders as aforesaid, if several Slaves shall receive sentence at one time, to mitigate and alter the sentence of any Slave, other than such as shall be convicted of homicide of a white person, who they shall think may deserve mercy, and may inflict such corporal punishment (other than death) on any such Slave, as they in discretion shall think fit, any thing herein contained to the contrary thereof, in any wise notwithstanding. *Provided*, that one or more of the said Slaves who shall be convicted of the crimes or offence aforesaid, where several are concerned, shall be executed for example, to deter others from offending in the like kind. A. A. 1740. P. L. 167.

(B.)

A negro man testified as follows:^[15]—I know Peter, he belongs to Mr. James Poyas; in May last, Peter and myself met in Legare street, at the corner of Lambol street, where the following conversation took place—He asked me the news—I replied, none that I know of—He said, by George! we can't live so. I replied, how will we do? He said, we can do very well, if you can find any one to assist us—will you join? I asked him, how do you mean? He said, why! to break the yoke; I replied, I don't know. He asked me, suppose you were to hear, that the whites were going to kill you, would you defend yourself? I replied, I'd try to escape. He asked, have you lately seen *Denmark Vesey*, and has he spoken to you particularly. I said no. Well then, said he, that's all now: but call at the shop to-morrow after knocking off work, and I will tell you more! We then parted.—I met him the next day, according to appointment, when he said to me, we intend to see, if we can't do something for ourselves, we can't live so. I asked him, where he would get men? He said, we'll find them fast enough, we have got enough, we expect men from country and town. But how, said I, will you manage it. Why, we will give them notice, said he, and they will march down and camp round the city. But what, said I, will they do for arms. He answered, they will find arms enough, they all bring down their hoes, axes, &c. I said, that won't do to fight with here. He said, stop! let us get candidates from town with arms, and we will then take the Guard-House and Arsenal in town, the Arsenal on the Neck and the Upper Guard-House, and supply the country people with arms. How, said I, will you approach those Arsenals, &c. for they are guarded? Yes, said he, I know that, but what are these guards, one man here, and one man there, we let a man pass before us. Well, said I, but how will the black people from the country, and those from the islands, know when you are to begin, or how will you get the town people together. Why, said he, we will have prayer meetings at night, and there notify them when to start, and when the clock strikes twelve, *all must move*. But, said I, the whites in the back country, Virginia, &c.; when they hear the news, will turn to, and kill you all, and besides, you may be betrayed. Well said he, what of that, if one gets hanged, we will rise at that minute. We then left his shop, and walked towards Broad street, when he said, I want

you to take notice of all the shops and stores in town with arms in them, take *down their numbers, and give them to me*. I said, I will see to it, and then we parted.

About the 1st of June, I saw in the public papers a statement that the white people were going to build missionary houses for the blacks, which I carried and showed to Peter, and said, see the good they are going to do for us; when, he said,—What of that?—Have you not heard, that on the 4th of July, the whites are going to create a false alarm of fire, and every *black* that comes out will be *killed*, in order *to thin them*? Do you think they would be so barbarous? (said I) Yes! (said he) I do!—I fear *they have a knowledge of an army from San Domingo*, and they would be *right to do it; to prevent us joining that army, if it should march towards this land*! I was then very much alarmed. We then parted, and I saw no more of him till the guards were very strict, (about a fortnight ago.) At that time I saw Peter and Ned Bennett standing and talking together, at the corner of Lambol and Legare-streets. They crossed over and met me by Mrs. Myles', and Ned Bennett said to me—did you hear what those boys were taken up for the other day? I replied, No! but some say it was for stealing. Ned asked me if I was sure I had never said any thing to the whites about what Peter Poyas had spoken to me about? I replied, No! Says Peter—You never did? No! I answered. Says Ned, to me—How do you stand? At which I struck the tree box with my knuckles and said, as firm as this box—I'll never say one word against you. Ned then smiled and nodded his head, and said—That will do!—when we all separated. Last Tuesday or Wednesday week, Peter said to me—You see, my lad, how the white people have got to windward of us? You won't, said I, be able to do any thing. O, yes! (he said) we will! By George we are oblige to! He said, all down this way ought to meet and have a collection to purchase powder. What, said I, is the use of powder—the whites can fire three times to our once. He said, but *'twill be such a dead time of the night, they won't know what is the matter, and our horse companies will go about the streets and prevent the whites from assembling*. I asked him—where will you get horses? Why, said he, there are many butcher boys with horses; and there are the livery stables, where we have several candidates; and the waiting men, belonging to the white people of the horse companies, will be told to take away their master's horses. He asked me if my master was not a horseman? I said, Yes! Has he not got arms in his house? I answered, Yes! Can't they be got at? I said, Yes! Then (said he) it is good to have them. I

asked what was the plan? Why, said he, after we have taken the Arsenals and Guard Houses, then we will set the town on fire, in different places, and as the whites come out we will slay them. If we were to set fire to the town first the man in the steeple would give the alarm too soon.—I am the Captain, said he, to take the lower Guard-House and Arsenal. But, I replied, when you are coming up, the Centinel will give the alarm. He said, he would advance a little distance ahead, and if he could only get a *grip at his throat, he was a gone man*, for his sword was very sharp; he had sharpened it, and had made it so sharp, it had cut his finger, which he showed me. As to the Arsenal on the Neck, he said, that it was gone as sure as fate, *Ned Bennett, would manage that with the people from the country, and the people between Hibbens' Ferry and Santee would land and take the Upper Guard-House*. I then said, then this thing seems true. My man, said he, God has a hand in it, *we have been meeting for four years, and are not yet betrayed*. I told him, I was afraid, after all, of the white people from the back country and Virginia, &c. He said that the blacks would collect so numerous from the country, we need not fear the whites from the other parts, for when we have once got the city we can keep them all out. He asked, if I had told my boys. I said no. Then said he, you should do it, for Ned Bennett has his people pretty well ranged. But, said he, take care and don't mention it to those waiting men who receive *presents of old coats, &c. from their masters, or they'll betray us*. I will speak to them. We then parted, and I have not since conversed with him. He said the rising was to take place last Sunday night, (16th June)—That *any of the coloured people who said a word about this matter would be killed by the others. The little man, who can't be killed, shot or taken is named Jack, a Gullah Negro*. Peter said there was a French Company in town of three hundred men fully armed—that he was to see Monday Gell, about expediting the rising. I know that Mingo went often to Mr. Paul's to see Edwin, but don't know if he spoke with William. Peter said he had a sword, and I ought to get one. He said he had got a letter from the country; I think from St. Thomas', from a negro man who belonged to the captain of a militia company, who said he could easily get the key of the house where the company's arms were put after muster, and take them all out, and help in that way. This business originates altogether with the *African Congregation*, in which Peter is a leader. When Bennett's Ned asked about those taken up, he alluded

particularly to Mr. Paul's William, and asked me if I said any thing to him about it.

The voluntary confession of ROLLA, to the Court, made after his trial, but before sentence was passed on him.

I know Denmark Vesey, on one occasion, he asked me what news? I told him, none. He replied, we are free, but the white people here won't let us be so; and the only way is, to raise up and fight the whites. I went to his house one night, to learn where the meetings were held. I never conversed on this subject with Batteau or Ned.—Vesey told me, he was the leader in this plot. I never conversed either with Peter or Mingo. Vesey induced me to join. When I went to Vesey's house, there was a meeting there, the room was full of people, but none of them white. That night, at Vesey's, we determined to have arms made, and each man to put in twelve and a half cents towards that purpose. Though Vesey's room was full, I did not know one individual there. At this meeting, Vesey said, we were to take the Guard-House and Magazines, to get arms; that we ought to rise up against the whites to get our liberties. He was the first to rise up and speak, and he read to us from the Bible, how the *children of Israel were delivered out of Egypt from bondage*; he said, that the rising would take place last Sunday night week, (the 16th June) and that Peter Poyas was one.

(C.)

Examination of SALLY, a negro woman belonging to Mr. Alexander Howard.

I know Jesse, and heard him speak several times about it; one day in particular, he was anxious to see his brother, who has my mother for his wife, and waited until he came, when they conversed together. Jesse said, he had got a horse to go into the country, to bring down men to fight the white people; that he was allowed to pass by two parties of the patrol on the road, but that a third party had brought him back, and that, if there were but five men like him, they would destroy the city. This was on last Sunday week, (the 16th June,) he said, that before 3 o'clock, that night, all the white people would be killed. That, if any person informed, or would not join in the fight, such person would be killed or poisoned. He frequently came into the yard to see his brother, and I threatened to inform, if he came there, and spoke in that way, to get us all into trouble. We never had any quarrel.

Examination of LOT, a negro man belonging to Mr. Forrester.

I know Jesse; he met me last Sunday week (16th June) at the corner of Boundary street, as I was coming into town; he said, he was going to get a horse to go into the country. From what my master had told me the Thursday before, I distrusted his errand, and gave him a caution. When, as I was going down into town towards Mr. Hibbens' ferry slip, and conversing with him, he said, you shall see to night, when I come down, what I am going up for, and, *if my own father does not assist, I will cut off his head.* He said, he was going as far as Goose Creek bridge, and would get a horse if it cost him nine dollars. The church bells were then ringing, and at half past eleven o'clock, same day, I saw him at Mr. Howard's, and afterwards understood from Sally, that he had set off for the country, and had been brought back by the Patrol.

(D.)

Examination of FRANK, a negro man belonging to Mrs. Ferguson.

I know Denmark Vesey, and have been to his house; I have heard him say, that the negroe's situation was so bad, he did not know how they could endure it; and was astonished they did not rise and fight for themselves, and he advised me to join, and rise. He said, he was going about to see different people, and mentioned the names of Ned, Bennett and Peter Poyas, as concerned with him; that he had spoken to Ned and Peter on this subject, and that they were to go about and tell the blacks, that they were free, and must rise and fight for themselves: that they would take the Magazines and Guard Houses, and the City, and be free; that he was going to send into the country to inform the people there, too; he said, he wanted me to join them. I said, I could not answer. He said, if I would not go into the country for him, he could get others; he said, himself, Ned Bennett, Peter Poyas and Monday Gell, were the principal men, and himself the head man.—He said, they were the principal men to go about and inform the people, and fix them, &c.; that one party would land on *South Bay*, one about Wappoo and about the Farms; that the party which was to land on South Bay, was to take the *Guard-House*, and get arms, and then they would be able to go on; that the attack was to commence about 12 o'clock at night; that great numbers would come from all about, and it must succeed, as so many were engaged in it; that they would kill all the whites; that they would leave their masters' houses, and assemble near the Lines, march down and meet the party which would land on South Bay; that he was going to send a man into the country on a horse, to bring down the country people, and that he would pay for the horse. He gave two dollars to Jesse, to get the horse on Saturday week last, (15th June) about 1 o'clock in the day, and myself and witness (No. 8,) also put in 25 cents a piece, and he told Jesse, if he could not go, he must send some one else. I have seen Ned Bennett at Vesey's. I one night met at Vesey's a great number of men, and as they came in, they each handed him some money.—Vesey said, there was a *little man*, named *Jack*, who could not be killed, and who would furnish them with arms; he had a charm, and

would lead them; that Charles Drayton had promised to be engaged with them. Vesey said, the negroes were living such an abominable life, they ought to rise. I said, I was living well. He said, though I was, others was not, and that it was such fools as I, that were in their way, and would not help them, and that, after all things were well, he would mark me. He said, he did not go with *Creighton to Africa, because he had not a will, he wanted to stay and see what he could do for his fellow creatures*. I met Ned, Monday, and others, at Denmark Vesey's, where they were talking about this business.

The first time I spoke with Monday Gell, it was one night at Denmark Vesey's house, where I heard Vesey tell Monday, that he must send some one into the country to bring the people down. Monday said, he had sent up Jack, and told him to tell the people to come down and join in the fight against the whites; and also to ascertain and inform him how many people he could get. A few days after, I met Vesey, Monday and Jack in the streets, under Mr. Duncan's trees, at night, where Jack stated, he had been into the country, round by Goose Creek and Dorchester; that he had spoken to 6,600 persons, who had agreed to join. Monday said to Vesey, that it Jack had so many men, they had better wait no longer, but begin the business at once, and others would join. The first time I saw Monday at Vesey's, he was going away early, when Vesey asked him to stay, to which Monday replied, he expected that night a meeting at his house, to fix upon and mature the plan, &c. and that he could stay no longer. I afterwards conversed with Monday in his shop, when he asked me, if I had heard that Bennett's and Poyas' people were taken up, that it was a great pity. He said, he had joined in the business. I told him to take care he was not taken up. Whenever I talked with Vesey, he always spoke of Monday Gell as being his principal and active man in this business.

(E.)

Examination of Witness No. 10, a Negro Man.

Peter Poyas was the first man who spoke to me, and asked me to join. I asked him what, the church? He said no, have you not heard, that the blacks were joining, to try and take the country. I asked him, if he thought he had men enough to do it? He said yes, a plenty of men, and the Society will contribute money, with which a white man would purchase guns and powder for them. He said he would call back, and I must consider if I would join them. He called back, and asked me, if I was willing now? Why Peter, said I, you have not got force enough. He said, if I did not join, he would turn all my country people against me. Said I, if so, I'll join you, but you must not put my name down, when you come out, if I find you strong enough, I'll join you. Well, said he, if you don't join you'll be killed. Peter and Harry Haig called on me afterwards, I was not at home; but the next morning I met Harry, who asked me for my name. I refused it. He said, I would be killed if I did not join. I said, I would join when they came out, if they were stronger than the whites. Harry called on me again, and asked me, if I was willing that the thing would break out soon. I asked him, where they would begin? He said, in Boundary street. At what hour? He said, at 12 o'clock at night, or early in the morning, as soon as the guard is discharged. Jack Pritchard called on me, he is sometimes called Gullah Jack, sometimes Couter Jack, he gave me some dry food, consisting of parched corn and ground nuts, and said, eat that, and nothing else, on the morning when it breaks out, and when you join us as we pass, put into your mouth this crab claw, and you can't be wounded, and, said he, I give the same to the rest of my troops—if you drop the large crab claw out of your mouth, then put in the small one. Said I, when do you break out, and have you arms. He said, plenty, but they are over Boundary street, we can't get at them now, but as soon as the patrol was slack, they could get them; this was previous to the 16th June, on which day, he said, they were to break out. On that day he came to me, and said, they could not break out that night, as the patrol was too strong; he said, he would let me know when they were ready. That

Sunday fortnight, the 30th June, he came to me and said, I must lay by still, they would not break out then, that he had been round to all his company and found them cowards. I said, thank God, then! He said, give me back my corn and cullah, (that is crab claw). I said, I would not, and upbraided him for having deluded so many. He said, all his country born promised him to join, because he was a Doctor, (that is a Conjurer). He said, the white people was looking for him, and he was afraid of being taken, that two men came to his master's wharf, and asked him, if he knew Gullah Jack, and that he told them, no. He said, his charms would not protect him from the treachery of his own colour. He went away, and I have not seen him since. Harry Haig has since seen me several times, and told me to hold myself ready. I said, I'm ready when called on. He said, all the draymen came to his master's cooper yard, and said they were ready, but he told them, he was only waiting for Gullah Jack. He said, he would tell me when they were ready, that they were only waiting for the head man, who was a white man; but he, although asked, would neither tell me the white man's name, nor where the powder and arms were; this was last Tuesday, the very day the six negroes were hanged, about six o'clock, A. M. this was the last time we spoke, though I have seen him since. I saw Charles Drayton before the 16th, at Monday Gell's, I was going to market, and Charles called to me as I crossed the street; Joe, who has a wife at Mr. Remoussin's, asked me, if I did know that Monday was at the head of the Ebo Company, who are going to fight the white people; Monday is an Ebo. I asked Joe, if he was one of that company. He said yes, he was. I asked him, what he could do, as he was an invalid.—He said, he would take Remoussin's sword and gun, and tell him to lay down in his bed and be quiet. We parted. Previous to the 16th of June, Monday Gell called me into his shop; I went in, and said to him, I heard he was captain of his countrymen's company, the Ebo's. He said, he was a sort of a one. I bid him good morning, when he said, when you want to hear the news, come here. I never saw him afterwards.

I met Charles Drayton on the 1st of July in the streets, when he said, now get ready, we must break out at once, for we will not let six lives be taken. I asked him, where they would begin? He said, in Boundary street, directly as the patrol and light horse turned in. I said, had you not better wait till after the 4th of July. He said, no, because in the mean time the people would be hanged. Charles said, they had force enough, and we parted. I met him in Market, betwixt 8 and 9 o'clock, on the 2d of July, and said to him, now the

people are hanged, I suppose you are sorry you joined in the business. He said yes, and we parted. Peter Poyas told me also, that they had force enough, that some would come from James' and John's islands, and some from Christ's Church Parish, where he generally went over to a meeting to have a talk, and that he had some about and in town, the number of which he would show me from the Society books, if I would only come to the Society. He said, they were to fight the whites, and keep on fighting, till the English came to help them. Harry told me the same thing. Jack being the head man, I asked him about the plan, he told me the same thing; that the English were to come here to help them, that the Americans could do nothing against the English, and that the English would carry them off to St. Domingo. Monday and Charles were very great together. John, Mr. Horry's coachman, came to me one day, and asked me what I thought? Every one is ready, said John, to fight the whites, are you ready? He said, I am ready. This took place sometime before the 16th June, and every day he asked me the same questions.—About this time George Vanderhorst came to me and said, they were going to take the country, and he had joined; that he was ready whenever the blacks broke out. He requested me to let him sleep at my wife's house near Boundary street; I saw him almost every day after the 16th June, and he always said, he was ready whenever the troops were ready. On the 16th June, Jack requested me to let twelve men sleep at my wife's, as they were to break out that night, and he wanted them to be near Boundary street. On being refused, he departed in anger, and reproached me. George called on me yesterday morning, and asked, if I knew that Charles Drayton was taken up, and said, he was afraid Charles would name him, not because he was on his list, for he had joined Jack's company, but because Charles had met him at Gullah Jack's, when they were consulting on the subject; that, if he could hear that Charles had named him, he would run off. On Monday, 1st July, Charles Drayton told me, that there would be an insurrection on the morning of the 6th July, as soon as the Guard turned in; he said, he commanded the country born company. Jack told me on the 1st July the same thing, and in addition, that they were to rush in with their dirks, guns and swords, &c. they had got, kill the City Guard, and take all the arms in the arsenals; he also said, there were some arms in King street, beyond Boundary street, in possession of a white man, which they intended to take, (alluding to the arms of the Charleston Neck Company, deposited at Wharton's, in King street). Charles Drayton said, he had prepared for

himself a gun and a sword. John Horry came to me very often, and once said, he had a sword, and that, as soon as it broke out, he would go up stairs and kill his master and family. On the 17th of June, on his carriage box, he expressed himself to me in the same manner he had done previous to the 16th. The blacks would have risen on the night of the 16th, had the Guards not been so strong; this I know from Gullah Jack and Harry Haig, who said, that if the Guards were not too strong, they would get the arms near the Lines, but if the Guards were out, they could not get them to break out with.

(F.)

Confession of HARRY HAIG.

Julius Forrest, and myself, always worked together. Gullah Jack calls himself a negro doctor, he induced Julius and myself to join at last, but at first we refused; before the 16th June, Jack appointed to meet us at Bulkley's Farm; when we got there, Jack was not there, but Peter Poyas came; we broke up at day-light. Not quite a month before the 16th June, Jack met me, and talked about war. I asked Jack, how he would do for arms? Bye and bye, said Jack, we will have arms; he said, he would have some arms made at the blacksmiths. Jack was going to give * * * * *
* * * * * Until Jack was taken up and condemned to death, I was just like I was bound up, and had not the power to speak one word about it. Jack charmed Julius and myself at last, and we then consented to join. Tom Russell, the blacksmith and Jack are partners, (in conjuring) Jack learnt him to be a doctor. Tom talked to Jack about the fighting, and agreed to join, and those two brought Julius and myself to agree to it. Jack said, Tom was his second, and "when you don't see me, and see Tom, you see one." Jack said, Tom was making arms for the black people; Jack said, he would not be killed, nor could a white man take him.

(H.)

***Confession of JESSE, the slave of Thomas Blackwood, Esqr.; furnished to
the Court by the Rev. Dr. D. HALL.***

I was invited to Denmark Vesey's house, and when I went, I found several men met together, among whom was Ned Bennett, Peter Poyas, and others, whom I did not know. Denmark opened the meeting by saying, he had an important secret to communicate to us, which we must not disclose to any one, and if we did, we should be put to instant death. He said, we were deprived of our rights and privileges by the white people, and that our church was shut up, so that we could not use it, and that it was high time for us to seek for our rights, and that we were fully able to conquer the whites, if we were only unanimous and courageous, as the St. Domingo people were. He then proceeded to explain his plan, by saying, that they intended to make the attack by setting the governor's mills on fire, and also some houses near the water, and as soon as the bells began to ring for fire, that they should kill every man, as he came out of his door, and that the servants in the yards should do it, and that it should be done with axes and clubs, and afterwards they should murder the women and children, for he said, God had so commanded it in the Scriptures. At another meeting at Denmark's, Ned Bennett and Peter Poyas, and several others were present in conversation, some said, they thought it was cruel to kill the ministers, and the women and children, but Denmark Vesey said, he thought it was for our safety, not to spare one white skin alive, for this was the plan they pursued in St. Domingo. He then said to me, Jesse, I want you to go into the country, to enlist as many of the country negroes as possible, to be in readiness to come down to assist us. I told him, I had no horse, and no money to hire one; he then took out two dollars, and gave them to me to hire a horse, and told me to enlist as many as possible. I got the horse the next Sabbath, and started, but the guard was so strict, I could not pass them without being taken up; so I returned, and told Denmark, at which he expressed his sorrow, and said, the business was urgent, for they wanted the country people to be armed, that they might attack the Forts at the same time, and

also to take every ship and vessel in the harbor, and to put every man to death, except the captains. For, said he, it will not be safe to stay in Charleston, for as soon as they had got all the money out of the banks, and the goods out of the stores on board, they intended to sail for St. Domingo; for he had a promise, that they would receive and protect them. This Jesse asserted to me, was the truth, whilst the tears were running down his cheeks, and he appeared truly penitent; and I have reason to hope, that he obtained pardon from God, through the merits of Christ, and was prepared to meet his fate with confidence, and that he was accepted of God. At 4 o'clock on the morning of the execution, I visited all the prisoners condemned, and found Jesse at prayers. He told me, his mind was placid and calm; he then assured me, that what he had told me was the truth, and *that he was prepared to meet his God.*

(K.)

Confession of MONDAY GELL.

I come out as a man who knows he is about to die—some time after Christmas Vesey passed my door, he called in and said to me, that he was trying to gather the blacks to try and see if any thing could be done to overcome the whites; he asked me to join; I asked him his plan and his numbers; he said he had Peter Poyas, Ned Bennett, and Jack Purcell; he asked me to join; I said no; he left me and I saw him not for some time. About four or five weeks ago as I went up Wentworth street, Frank Ferguson met me, and said he had four plantation's of people who he was to go for on Saturday, 15th June. How, said I, will you bring them down; he said through the woods; he asked me if I was going towards Vesey's to ask Vesey to be at home that evening, and he would be there to tell him his success. I asked Jack Purcell to carry this message, he said he would; that same evening at my house I met Vesey's mulatto boy, he told me Vesey wished to see me, I went with him; when I went into Vesey's I met Ned Bennett, Peter Poyas, and Frank Ferguson, and Adam, and Gullah Jack; they were consulting about the plan; Frank told Vesey on Saturday, 15th, he would go and bring down the people and lodge them near town in the woods; the plan was to arm themselves by breaking open the stores with arms. I then told Vesey I would join them, after sometime I told them I had some business of my own and asked them to excuse me, I went away, and only then was I ever there. One evening, Perault Strohecker, and Bacchus Hammett brought to my shop a keg, and asked me to let it stay there till they sent for it; I said yes, but did not know the contents; the next evening Gullah Jack came and took away the keg, this was before the 16th June; since I have been in prison I learnt that the keg contained powder.

Pharo Thompson is concerned, and he told me, a day or two after Ned and Peter were taken up, if he could get a fifty dollar bill, he would run away; about two Sundays before I was brought here, he asked me, in Archdale-Street, when shall we be like those white people in the church; I said when it pleased God; Sunday before I was taken up, he met me as I

came out of Archdale Church, and took me into a stable in said street, and told me he told his master, who had asked him, that he had nothing to do in this affair; which was a lie. William Colcock came to my shop once and said a brother told him that five hundred men were making up for the same purpose. Frank said he was to send to HellHole Swamp to get men.

Perault Strohecker is engaged; he used to go of a Sunday on horse back up the road to a man he knows on the same errand. One Sunday he asked me to go with him; I went and Smart Anderson; we went to a small house a little way from the road after you turn into the ship yard road, on its left hand; they too went into the stable with an old man that lived there, I remained in the yard; they remained in the stable about half an hour; as soon as they came out, I and Perault started to town to go to church, and left Smart there; I was told by Denbow Martin, who has a wife in Mr. Smith's house, that Stephen Smith belonged to some of the gangs.

Saby Gaillard is concerned; he met me on the Bay, before the 16th of June and gave me a piece of paper from his pocket; this paper was about the battle that Boyer had in St. Domingo; in a day or two he called on me and asked if I had read it, and said if he had as many men he would do the same too, as he could whip ten white men himself; he frequently came to me to speak about this matter, and at last I had to insult him out of the shop; he and Paris Ball was often together. A week before I was taken up, Paris told me that my name was called.

Billy Palmer and Vesey were constantly together; there was once in my shop a long talk between them about this same matter; I begged them to stop it; Vesey told him to try to get as many as he could; he said he would.

John Vincent told me that Edward Johnson, a free man, had said, as he was a free man he would have nothing to do with slaves, but the night they began he would join them.

I told Charles Drayton what uproar there was about this business, and since we have been here we have talked together.

Albert Inglis came to me and asked if I knew any thing about it; I said yes. He asked me if I had joined; I said yes; he said he was one also; he said Adam, a free man wanted to see me, I went with him one night; Adam asked me how many men had joined; I told him what Frank Ferguson had said; he asked me if I believed it; I said yes; he said if he could only find

men behind him he would go before. Previous to the 16th, Albert said to me quit the business; I told him I was too far into it, so I must stick to it.

I never wrote to St. Domingo^[16] or any where else on this subject, nor kept a list or books, nor saw any such things, but heard that Paul's William had a list, nor did I hear any thing about arms being in possession of the blacks. I don't know that Tom Russel made pikes, nor that Gullah Jack had any of them.

Lewis Remoussin called at my shop and asked me to call at his house, he had something to tell me, but I did not go; Jack Glen told me he was engaged.

I met Scipio Sims one Sunday, coming from the country, who said he had been near the Savannah's to Mr. Middleton's place; I heard afterwards that his errand was on this business.

I know John the cooper, who said he was engaged too in this business.

William Garner said he was engaged in it and had got twelve or thirteen draymen to join.

Sandy Vesey told me he belonged to it too.

At Vesey's house, Frank told Gullah Jack, to put one ball and three buck shot in each cartridge.

Mingo Harth acknowledged to me that he had joined, and Peter Poyas told me so too; he, Mingo, told me so several times; Mingo said he was to have his master's horse on the night of the 16th.

Lot Forrester told me frequently that he was one of the company, and I know that he had joined in the business myself. Isaac Harth told me once that he had joined, he knew I was in the business.

Morris Brown knew nothing of it, and we agreed not to let him, Harry Drayton, or Charles Corr, know anything about it. ——— told me in my store that he was to get some powder from his master and give it to Peter Poyas; he seemed to have been a long time engaged in it, and to know a great deal. Joe Jore acknowledged to me once or twice that he had joined, he said he knew some of the Frenchmen concerned; he knew I was in it.

(L.)

The Confession of JACK PURCELL.

If it had not been for the cunning of that old villain Vesey, I should not now be in my present situation. He employed every stratagem to induce me to join him. He was in the habit of reading to me all the passages in the newspapers that related to St. Domingo, and apparently every pamphlet he could lay his hands on, that had any connection with slavery. He one day brought me a speech which he told me had been delivered in Congress by a *Mr. King* on the subject of slavery; he told me this Mr. King was the black man's friend, that he Mr. King had declared he would continue to speak, write and publish pamphlets against slavery the longest day he lived, until the Southern States consented to emancipate their slaves, for that slavery was a great disgrace to the country.

(M.)

CONFESSION OF JOHN ENSLOW.

Monday Gell led me in it and took me to Vesey's; there was a large meeting; Vesey told the meeting the people was to rise up and fight the white people for their liberty; we always went to Monday's house afterwards; Monday did all the writing; I heard they were trying all round the country to Georgetown, Santee, and round to Combahee, &c. about to get people; Peter was also there, he was one; Peter named Poyas' plantation, where he went to meet; Bellisle Yates I have seen at the meetings, and Adam Yates, Naphur Yates, Dean Mitchell, Cæsar Smith and George (a Stevedore.) At Vesey's they wanted to make a collection to make pikes for the country people, but the men had no money! Monday Gell said Purcell was one to get horses to send men into the country; I heard a blacksmith was to make pikes. Jack M'Neil is engaged; I have seen them all at Monday's; Jack said he was one and would try to get men; the plan was to take the Arsenals and Guard Houses for arms, and not to fire the town unless they failed; Monday was writing a letter to St. Domingo, to go by a vessel lying at Gibb's and Harper's wharf; the letter was about the sufferings of the blacks, and to know if the people of St. Domingo would help them if they made an effort to free themselves; he was writing this letter in March, I am not certain of the time; Perault was present when Monday wrote the letter, and also a painter, named Prince Righton; I have seen Pompey Haig at Monday's, but he neither assented or dissented; Jerry Cohen was at Vesey's, and said to me he was one; I heard from Vesey and Monday that they had engaged men from the country; Peter Poyas said he had sent into the country to his brother to engage men, who would send him an answer; a party was to attack the Guard-House and Arsenal; another the Arsenal on the Neck; another the Naval Stores on Mey's wharf; another to attack the Magazine; another to meet at Lightwood's Alley and then try to cut off the companies from meeting at their places of rendezvous; I belong to the African Congregation; on Saturday the 15th June, a man was to be sent into the country to bring down the people, and Rolla was to command

the country people from Ashley River at the Bridge; Ned Bennett and John Horry to meet at Mr. Horry's corner, and Batteau to come down with Vesey's party.

(S)

CLASS No. 1.

Comprises those prisoners who were found guilty and executed.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
Peter Ned Rolla Batteau Denmark Vesey Jessy	James Poyas Gov. T. Bennett, do. do. A free black man Thos. Blackwood	June 18 do. do. do. 22 23	Hanged on Tuesday the 2d July, 1822, on Blake's lands, near Charleston.
John Gullah Jack	Elias Horry Paul Pritchard	July 5 do.	
Mingo Lot Joe Julius Tom Smart John Robert Adam Polydore Bacchus Dick Pharaoh Jemmy Mauidore	Wm. Harth Forrester P. L. Jore Thos. Forrest Mrs. Russell Robt. Anderson John Robertson do. do. Mrs. Faber Benj. Hammet Wm. Sims — Thompson Mrs. Clement Mordecai Cohen — Mitchell Mrs. Purcell Est. of Jos. Yates	June 21 27 July 6 8 10 do. 11 do. do. do. do. 13 do. 18 19 do. 12 18	
Naphur Adam	do. do.	do. do.	

Jacob	John S. Glen	16	
Charles	John Billings	18	
Jack	N. McNeill	22	
Cæsar	Miss Smith	do.	
Jacob Stagg	Jacob Lankester	23	Do. Tues. July 30.
Tom	Wm. M. Scott	24	
William	Mrs. Garner	Aug. 2	Do. Friday, Aug. 9.

CLASS No. 2.

Comprises those prisoners who were found guilty and sentenced to death, but recommended to the mercy of the Executive, by the Court of Magistrates and Freeholders.

☞ They have been respited to the 25 day of October, 1822, with a view to the commutation of their punishment to banishment beyond the limits of the United States.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
Louis	Cromwell	July 12	Respited until the 25th of October; and now confined in the Work-House of Charleston.
Seymour	Kunhardt	do.	
Saby Gaillard	A free black man	13	
Isaac	Wm. Harth	do.	
Paris	Mrs. Ball	15	
Peter	Mrs. Cooper	do.	
Dublin	C. G. Morris	18	
George	— Bampfield	do.	
Sandy	Jacob Schnell	19	

CLASS No. 3.

Comprises those prisoners who were found guilty and sentenced to death, but since respited by the Executive, until the 25th of Oct. with a view to the commutation of their punishment, to banishment beyond the limits of the United States.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
-------------------------	-----------------------	------------------------	-------------------------

William	Job Palmer	July 18	Respited till Oct. 25, and now in the Work-House.
John Vincent	D. Cruckshanks	23	
Billy Robinson	P. Robinson	do.	

CLASS No. 4.

Comprises those prisoners who were found guilty and sentenced to be, transported, beyond the limits of the United States, by their masters, under the direction of the City Council.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
William	John Paul	May 31	Confined in the W. House.
Edwin	do.	June 24	
Monday	John Gell	27	Do. and Sentenced to death, commuted to banishment out U. S.
Charles	Hon. J. Drayton	July 2	
Harry	David Haig	5	
Frank	Mrs. Ferguson	June 27	Confined in the W. House.
George	— Theus	July 6	
Perault	— Strohecker	10	
Billy	S. Bulkley	do.	
John	— Enslow	13	
Scipio	Wm. Sims	do.	
Agrippa	Mrs. Perry	19	
Nero	David Haig	23	
Sam. Bainsill	— Bainstill	do.	
Dembo	J. N. Martin	25	
Adam Bellamy	J. H. Merritt	Aug. 3	
Jack	Wm. Cattell	5	
George	— Evans	6	
Harry	— Butler	do.	
George	Sam. Parker	do.	
Pompey	Richd. Lord	5	

CLASS No. 5.

Comprises those who were found guilty and sentenced to be transported, beyond the limits of the State of South-Carolina.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
Prince Graham	A free black man	July 21	Sentenced to be imprisoned one month in the W. House, and then transported beyond the limits of the State.

☞ This man will go out of the U. States at his own request, under the direction of the City Council.

CLASS No. 6.

Comprises those prisoners who were acquitted by the Court, their guilt not being fully proved. The Court, however, have suggested to their owners, the propriety of transporting them beyond the limits of the United States.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
Buonaparte	Francis Mulligan	July 11	Acquitted by Court, master desired to transport, and now in the work-house Charleston.
Abraham	Dr. Poyas	June 22	
Butcher	Jas. L. Gibbes	July 11	
John	Mrs. Taylor	13	
Prince	Miss Righton	19	
Quash Harleston	A free black man	29	—By arrangement with Council, gone out of the U. S.
Harry Purse Panza Liverpool	Wm. Purse — Mitchell Mrs. Hunt	not arrested	Arranged with owner to be transported.

CLASS No. 7.

Comprises those prisoners who were acquitted by the Court of Magistrates and Freeholders—and discharged.

<i>Prisoners Names.</i>	<i>Owners' Names.</i>	<i>Time of Commit.</i>	<i>How Disposed of.</i>
Amherst	Mrs. Lining	June 18	Acquitted and Discharged.
Mungo	Jas. Poyas	do.	
Stephen	Tho. R. Smith	do.	
Matthias	Gov. T. Bennett	do.	
Jeffrey Grant	A free black man	20	

Brand	Jon. Lucas	do.	
Richard	do.		17
John	do.	do.	
Rob. Hadden	A free col'd. man		22
Sam. Guifford	do.	do.	
Pompey	John Bryan		28
Adam	Mrs. Ferguson		27
Harry	— Harleston		
Peter	Mrs. Ward	July 10	
Sandy	Francis Curtis		11
Isaac	Paul Trapier	do.	
Charles	Mrs. Shrubrick	do.	
Cuffy	Charles Graves	do.	
Pierre Louis	Mons. Chapeau		18
Cæsar	Mrs. Parker		19
William	Mrs. Colcock		12
Pompey	David Haig	June 23	
Friday	Mrs. Rout		
Philander Michau	A free col'd. man	Aug. 3	
Edward Johnson	A free black man	do.	
Stephen Walker	— Walker		5
James	do.	do.	
Harry	J. Nell		6

CLASS No. 8.

Comprises those prisoners who were discharged after their arrest by the Committee of Vigilance, the testimony against them not being sufficient to bring them to trial.

Prisoners Names.	Owners' Names.	Time of Commit.	How Disposed of.
Hercules	— Clark	June 20	Discharged, June 28
Jim	J. H. Ancrum	22	do. 25
Sandy	H. P. Holmes	25	do. 26
Lemon	— Houston	23	do. 25
Rob. Nesbitt	A free man	July 3	do. July 5
Patrick	Mrs. Datea	4	do. 6
Thomas	S. Magwood	5	do. 8
Charles	F. G. Deliesseline	8	do. 10
William	— Adger	10	do. 20
Smart	Mrs. Ward	do.	do. 27
Mungo	Wm. Lowndes	11	do. 20
Thomas	A. Lord	do.	do. 13

Bob	— Hibben	13	do.	27
Albert	Thos. Ingles	15	do.	17
Jim	— Happoldt	do.	do.	29
John	— Gates	do.	do.	
Charles	— Hasell	do.	do.	
James	— Dowling	17	do.	
Prince	do.	do.	do.	
Billy	— Fordham	20	do.	25
Ben	— Cammer	22	do.	27
William	— Cromwell	do.	do.	
Stephen	— Harper	26	do.	
Louis	John Gell	July 18	do.	July 20
Pompey	John Bryan	Aug. 5	do.	August 5

RECAPITULATION.

Number of Prisoners executed	35
Number of Prisoners respited until the 25th October, 1822, with a view to the commutation of their punishment	12
Number of Prisoners sentenced to be transported by their owners under direction of the City Council	21
Number of Prisoners sentenced to be transported beyond the limits of the State	1
Number of Prisoners acquitted, propriety of transportation suggested to their owners, and those whose masters have agreed to transport without trial	9
Number of Prisoners acquitted and discharged by the Court	27
Number of Prisoners acquitted and discharged by Committee of Vigilance	25
Whole number arrested	131

Respectfully submitted by

FRED. WESNER, THO. D. CONDY, THO. NAPIER, SAMUEL BURGER, EDWARD P. SIMONS,

*Com. of
Vigilance*

SENTENCE.

9th July, 1822.—JACK, a slave, belonging to Paul Pritchard, commonly called GULLAH JACK, and sometimes COUTER JACK, was brought up, and, sentence pronounced by L. H. KENNEDY, Presiding Magistrate.

JACK PRITCHARD—The Court, after deliberately considering all the circumstances of your case, are perfectly satisfied of your guilt. In the prosecution of your wicked designs, you were not satisfied with resorting to natural and ordinary means, but endeavored to enlist on your behalf, all the powers of darkness, and employed for that purpose, the most disgusting mummary and superstition. You represented yourself as invulnerable; that you could neither be taken nor destroyed, and that all who fought under your banners would be invincible. While such wretched expedients are calculated to *inspire* the confidence, or to alarm the fears of the ignorant and credulous, they excite no other emotion in the mind of the intelligent and enlightened, but contempt and disgust. Your boasted Charms have not preserved yourself, and of course could not protect others. “Your Altars and your Gods have sunk together in the dust.” The airy spectres, conjured by you, have been chased away by the superior light of Truth, and you stand exposed, the miserable and deluded victim of offended Justice. Your days are literally numbered. You will shortly be consigned to the cold and silent grave, and all the Powers of Darkness cannot rescue you from your approaching Fate! Let me then, conjure you to devote the remnant of your miserable existence in fleeing from the “*wrath to come.*” This can only be done by a full disclosure of the truth. The Court are willing to afford you all the aid in their power, and to permit any Minister of the Gospel, whom you may select to have free access to you. To him you may unburthen your guilty conscience. Neglect not the opportunity, for there is “no device nor art beyond the tomb,” to which you must shortly be consigned.

SENTENCE *pronounced on* DICK, BACCHUS, WILLIAM, NAPHUR, ADAM, BELLISLE, CHARLES, JEREMY *and* DEAN, *by* L. H. KENNEDY, *Esq.* PRESIDING MAGISTRATE.

The Court, on mature deliberation, have pronounced you guilty; the punishment of that guilt is DEATH. Your conduct, on the present occasion, exhibits a degree of depravity and extravagance, rarely paralleled. Your professed objects were to trample, not only on the laws of this state, but on those of humanity; to commit murder, outrage and plunder, and to substitute for the blessings we enjoy, anarchy and confusion in their most odious forms.—The beauties of nature and of art, would have fallen victims to your relentless fury; and even the decrepitude of age and the innocence of childhood would have found no other refuge than the grave!

Surely, nothing but infatuation could have prompted you to enter into a plot so wild and diabolical. A moment's reflection would have convinced you, that disgrace and ruin must have been its consequence, and that it would have probably resulted in the destruction and extermination of *your race*. But if, even complete success had crowned your efforts, what were the golden visions which you anticipated? Such men as you, are, in general, as ignorant as you are vicious, without any settled principles, and possessing but few of the virtues of civilized life;—you would soon, therefore, have degenerated into a horde of barbarians, incapable of any government. But, admitting that a different result might have taken place, it is natural to inquire, what are the miseries of which you complain? That we should all earn our bread by the sweat of our brow, is the decree which God pronounced at the fall of man. It extended alike to the master and the slave; to the cottage and the throne. Every one is more or less subject to control; and the most exalted, as well as the humblest individual, must bow with deference to the laws of that community, in which he is placed by Providence. Your situation, therefore, was neither extraordinary nor unnatural. Servitude has existed under various forms, from the Deluge to the present time, and in no age or country has the condition of slaves been milder or more humane, than your own. You are, with few exceptions, treated with kindness, and enjoy every comfort compatible with your situation. You are exempt from many of the miseries, to which *the poor* are subject throughout the world. In many countries the life of the slave is at the

disposal of his master; here you have always been under the protection of the law.

The tribunal which now imposes this sentence, through its humble organ, affords a strong exemplification of the truth of these remarks. In the discharge of the painful duties which have devolved on them, the members of this Court have been as anxious to acquit the innocent as determined to condemn the guilty.

In addition to the crime of treason, you have on the present occasion, displayed the vilest ingratitude. It is a melancholy truth that those servants in whom was reposed the most unlimited confidence, have been the principal actors in this wicked scheme. Reared by the hand of kindness, and fostered by a master who assumed many of the duties of a parent, you have realized the fable of the Frozen Serpent, and attempted to destroy the bosom that sheltered and protected you.

You have, moreover, committed the grossest impiety: you have perverted the sacred words of God, and attempted to torture them into a sanction for crimes, at the bare imagination of which, humanity shudders. Are you incapable of the Heavenly influence of that Gospel, all whose “paths are Peace?” It was to reconcile us to our destiny on earth, and to enable us to discharge with fidelity all our duties, whether as master or servant, that those inspired precepts were imparted by Heaven to fallen man. There is no condition of life which is not embraced by them: and if you had searched them, *in the spirit of truth*, you would have discovered instructions peculiarly applicable to yourselves—“*Servants (says St. Paul) be obedient to them that are your masters, according to the flesh, with fear and trembling, in singleness of your heart, as unto Christ: not with eye-service as men pleasers, but as the servants of Christ, doing the will of God from the heart.*” Had you listened with sincerity to such doctrines, you would not have been arrested by an ignominious death.

Your days on earth are near their close and you now stand upon the confines of eternity. While you linger on this side of the grave, permit me to exhort you, in the name of the ever-living God, whose holy ordinances you have violated, to devote most earnestly the remnant of your days, in penitence and preparation for that Tribunal, whose sentence, whether pronounced in anger or in mercy, is eternal.

The above Sentences is selected out of the many passed on this occasion, with a view, to give the reader a general idea of them.

POSTSCRIPT.

Since these sheets have been put to press, it affords him, who has been engaged in their preparation, much gratification to be able to correct one mistake, as it places the fidelity of the slave who first gave the intelligence of the intended insurrection, on much higher ground. On conferring with his master and the free man of colour, whose advice he sought, it appears that the slave in question communicated the conversation at the Market to his young master, before he consulted his friend, (the free man of colour,) and that the advice of the latter was that as “his young master was a youth, that it would be best for him *immediately, without delay*, to tell his mistress, that his master might receive the information the instant he came to town.” *Vide* page [5](#).

PRINTED AND SOLD BY A. E. MILLER, NO. 4, BROAD-STREET.

Price 25cts. each; discount by the hundred.

[1](#). It would be a libel on the liberality and gratitude of this community to suppose that this man can be *overlooked* among those who are to be rewarded for their fidelity and principle.

[2](#). The purport of this letter will be seen by reference to the trial of Abraham Poyas.

[3](#). Most of the black religious communities in this place, are divided into classes, over which a Leader is placed, having the confidence of the Pastor of the Church.

[4](#). This witness gave the information under a pledge, that his name should not be divulged.

[5](#). The Republican Artillery under Capt. Patterson, was on duty on the night of the 16th, and were armed with muskets, and stationed in the Arsenal Yard.

[6](#). The following Note appears on the Journals of the Court, in relation to the trial of Rolla —“Five witnesses were introduced and examined in behalf of Rolla, but so far from impeaching the

credibility of the witnesses against him they rather supported it.”

7. After the execution of Peter, his guilt, in the most flagrant degree became most abundantly established; affording, in every particular, the strongest corroboration of the testimony by which he had been convicted. It was apparent that he was the most efficient of all the ringleaders, and one who possessed the largest share of the confidence of Denmark Vesey, who was, in every sense of the term, the father of the plot. Peter was a slave of great value, and for his colour, a first rate ship-carpenter. He had the confidence of his master in a remarkable degree, and had been treated with indulgence, liberality and kindness.

8. As Denmark Vesey has occupied so large a place in the conspiracy, a brief notice of him will, perhaps, be not devoid of interest. The following anecdote will show how near he was to the chance of being distinguished in the bloody events of San Domingo. During the revolutionary war, Captain Vesey, now an old resident of this city, commanded a ship that traded between St. Thomas' and Cape Francois (San Domingo.) He was engaged in supplying the French of that Island with Slaves. In the year 1781, he took on board at St. Thomas' 390 slaves and sailed for the Cape; on the passage, he and his officers were struck with the beauty, alertness and intelligence of a boy about 14 years of age, whom they made a pet of, by taking him into the cabin, changing his apparel, and calling him by way of distinction *Telemaque*, (which appellation has since, by gradual corruption, among the negroes, been changed to *Denmark*, or sometimes *Telmak*.) On the arrival, however, of the ship at the Cape, Captain Vesey, having no use for the boy, sold him among his other slaves, and returned to St. Thomas'. On his next voyage to the Cape, he was surprised to learn from his consignee that *Telemaque* would be returned on his hands, as the planter, who had purchased him, represented him unsound, and subject to epileptic fits. According to the custom of trade in that place, the boy was placed in the hands of the king's physician, who decided that he was unsound, and Captain Vesey was compelled to take him back, of which he had no occasion to repent, as Denmark proved, for 20 years, a most faithful slave. In 1800, Denmark drew a prize of \$1500 in the East-Bay-Street Lottery, with which he purchased his freedom from his master, at six hundred dollars, much less than his real value. From that period to the day of his apprehension he has been working as a carpenter in this city, distinguished for great strength and activity. Among his colour he was always looked up to with awe and respect. His temper was impetuous and domineering in the extreme, qualifying him for the despotic rule, of which he was ambitious. All his passions were ungovernable and savage; and, to his numerous wives and children, he displayed the haughty and capricious cruelty of an Eastern Bashaw. He had nearly effected his escape, after information had been lodged against him. For three days the town was searched for him without success. As early as Monday, the 17th, he had concealed himself. It was not until the night of the 22d of June, during a perfect tempest, that he was found secreted in the house of one of his wives. It is to the uncommon efforts and vigilance of Mr. Wesner, and Capt. Dove, of the City Guard, (the latter of whom seized him) that public justice received its necessary tribute, in the execution of this man. If the party had been one moment later, he would, in all probability, have effected his escape the next day in some outward bound vessel.

9. *Monday Gell* is very well known in this city. He is a most excellent harness-maker, and kept his shop in Meeting-Street. It would be difficult to name any individual more actively engaged in the plot than himself, or more able to aid Denmark Vesey, from his uncommon sagacity and knowledge. He reads and writes with great and equal facility, and obviously seems to have been the individual who held the pen, at all the meetings. At which he wrote more than *one* letter to San Domingo, for succors. His own situation afforded no excuse for the effort in which he was engaged, as he enjoyed all the substantial comforts of a free man; much indulged and trusted by his master, his time and a large proportion of the profits of his labour were at his own disposal. He even kept his master's *arms* and sometimes his money. Monday is an *Ebo*, and is now in the prime of life, having been in the country 15 or 20 years.

[10.](#) At the meeting of the Court on the morning of the 13th, Mr. James Legare, from feeble health and great exhaustion during its previous sittings, asked, and obtained leave, to withdraw, whereupon Mr. Henry Deas, was summoned by the Magistrates, who took his seat and served until the adjournment of the Court.

[11.](#) This farm was under the charge of a slave named *Billy*, who became a witness for the state and gave some important details of the meetings of the *Gullahs*. Several of whom were executed on the 26th.

[12.](#) This Confession of Purcell's will show, that the evil foretold, from the discussion of the *Missouri Question*, has been, in some degree, realized.

[13.](#) See Enslow's Confession, Appendix (M.)

[14.](#) An appellation, the seceders assumed after their leaving the white Methodist Church.

[15.](#) Against this witness, the Court had not a tittle of testimony; he consented without hesitation to become a witness, and to give all the information he possessed; a pledge having been previously given him by the Court, that he should not be prosecuted, nor his name revealed.

[16.](#) *Perault unhesitatingly stated to Monday's face, that he had written two letters, to St. Domingo, and that he (Perault) had gone to Vanderhorsts wharf with him, in April or May last, to give them in charge of a black cook on board of a schooner bound to that island. After Monday was so charged, he confessed that the fact was so, and that he had been induced to conceal it under an apprehension that if it were known he had been guilty of such an act all chance of mercy would be denied him.*



TRANSCRIBER'S NOTES

1. Silently corrected typographical errors and variations in spelling.
2. Retained anachronistic, non-standard, and uncertain spellings as printed.
3. Footnotes have been re-indexed using numbers and collected together at the end of the last chapter.

*** END OF THE PROJECT GUTENBERG EBOOK AN ACCOUNT OF
THE LATE INTENDED INSURRECTION AMONG A PORTION OF
THE BLACKS OF THIS CITY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain

Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration,

modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.